

**IN THE SUPREME COURT  
OF THE STATE OF  
WASHINGTON**

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Case Number: 102950-1  
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ZACKARIAH BENNETT

Appellant

and

MELVINA MANNING

Respondent  
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APELLANT'S REPLY

## **Introduction**

I, Zackariah Jeremiah Bennett, appellant, hereby reply to the response made by the Respondent, Melvina Manning, clarifying inconsistencies and pointing out the lack of supporting evidence.

Additionally, I will address a continuity of errors made by counsel for Respondent, Nancy Gass. These “errors” have persisted in a manner that evidences an intent to knowingly mislead the court.

## **Background**

Mrs. Manning would have the courts believe the matter at hand is about anything other than the truth - while doing everything in her power to prevent me from having the courts review the case.

What Mrs. Manning has done is outrageous. It is child abuse. It is coercive control. She has robbed TB of a relationship with his loving father, siblings, and relatives.

Mrs. Manning knows the lies she’s told, the laws she’s broken, how she’s manipulated & defrauded her family, and used the courts to make it appear legal. She did all of this for reasons she refuses to answer. I was raised by her, along with my brother; her alienation of my father caused untold damage, and now she’s done even worse to my son T.B., which is why I requested a Guardian ad litem at the very beginning of the 2022 matter on appeal here.

Mrs. Manning requested renewal of the protection order on May 1<sup>st</sup> 2023 - and it would have been renewed had she followed procedure when filing. After the DVPO expired, and after I filed my brief requesting review, Mrs. Manning hired an attorney, who claimed it was suddenly moot, and shouldn’t be reviewed.

It has been stated that hiring an attorney was a serious strain on Mrs. Manning - so why did she hire one just to prevent a possible vacating of an expired DVPO, knowing she was protected by statute from imposition of costs or fines associated with my defense? To prevent review.

Mrs. Manning has made numerous unsupported false allegations against me. These are just more examples of Mrs. Manning using conclusory boilerplate

allegations to mislead the court, lacking any substantive evidence or specific details. It is libel per se; pure character bashing with generic false claims that fail to provide the factual basis necessary to support their assertions.

It is no different than what can be seen in the documents filed in 2008, and the lengths she went to so that I was not afforded the ability to speak.

Mrs. Manning is awaiting decision on her motion for summary judgement in a related civil suit against her. Again, attempting to evade judicial scrutiny of her actions.

## Summary of Issues

### 1. Incorrect law applied.

A. As Justice Hazelrigg stated 26.50RCW was the applicable statute.

B. Ms. Gass incorrectly argues that 7.105.200(7) was effective prior to July 1<sup>st</sup> 2022.

1. [WA Laws of 2022 c 268 sec. 1] contains the amendment to RCW 7.105.010 that adds the definition of unlawful harassment (at Part 35<sup>1</sup>) used throughout the chapter.

2. ***“Effective dates-----2022 c 268: “(1) Except for sections 9 through 14, 37, and 47 of this act, this act takes effect July 1, 2022. (2) Section 37 of this act takes effect July 1, 2023. (3) Sections 9 through 14 and 47 of this act are necessary for the immediate preservation of the public peace, health, or safety, or support of the state government and its existing public institutions, and take effect immediately.””***<sup>2</sup>

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<sup>1</sup> Washington Session Laws of 2022 ch.268 at page 1965

<sup>2</sup> Id at page 2051 [emphasis added]

3. Ms. Gass mistakenly asks the court to apply the effective date of a section of legislation [2022 c 268 sec.9] to an RCW [7.105.010(9)].<sup>3</sup>

4. [2022 c 268 sec. 9] is completely unrelated to RCW 7.105.200<sup>4</sup>

C. The initial filing papers by Mrs. Manning clearly state the controlling RCW as 26.50, as well as defines domestic violence.

1. Nothing in that filing satisfies the elements defined therein as DV.

D. The definition used by the trial court was 7.105.010(35) Unlawful Harassment. This definition was specifically defined in sec. 1 and legislated with an effective date of 07/01/2022<sup>5</sup>, and therefore does not legally apply to allegations from 06//2022 as that would be a retroactive application of the law.

E. The trial court, on top of using the wrong rcw, found that the main element constituting Unlawful Harassment 'did not apply', and stated so.

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## **2. Allegation of threats with no supporting evidence despite multiple requests for such proof.**

A. Mrs. Manning clearly stated, under oath, that “. . . nothing -- no threats had been made this entire time . . .”<sup>6</sup>, which is true.

B. Mrs. Manning's accusations are boilerplate, unspecified; no elaboration, no initial details are given. The details provided afterward shift to suit her.

C. The complete messenger conversation history (2010-current)<sup>7</sup>, combined with supporting declarations (of Mr. Bennett, his wife, his daughter, and several other close family members), clearly evidence a relationship dynamic -

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<sup>3</sup> Answer to Petition for Review 5/22/2024

<sup>4</sup> Washington Session Laws of 2022 ch.268 at page 1977

<sup>5</sup> See footnote 6 above

<sup>6</sup> RP at 40

<sup>7</sup> [ 23-2-11352-7 sub# 26]

a dynamic that wholly contradicts Mrs. Manning's proffered narrative, and supports Mr. Bennett's assertion that he has never treated his mother in the manner she has alleged to the courts.

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### **3. The withholding, spoliation, and other issues concerning the security video.**

A. The appellant decried the allegations as both false & unjust, unwavering from the very start, steadfast that the full video would exonerate him of the false allegations made by Mrs. Manning.

B. The first mention of the video was by Mr. Bennett.

C. Mrs. Manning did not deny Mr. Bennett's repeated claims the video was proof of his innocence.

D. Mrs. Manning knowingly spoliated the video after Mr. Bennett requested it, and did not disclose that voluntarily.

- i. Mrs. Manning withheld the video until a deadline for disclosure prompted her attorney to compel her to hand it over.
- ii. After a hearing on 05/17/2024, postponing the hearing for Mrs. Manning's motion for summary judgment<sup>8</sup>, Ms. Gass provided Mr. Bennett with the 93s clip.
- iii. On 05/19/2024, after having the video analyzed, Mr. Bennett contacted Mrs. Manning's counsel [Ms. Gass] via email with results indicating that it was not the security video as requested, it was fraudulent<sup>9</sup>.
- iv. On 05/20/2024, Ms. Gass replied:

*"We sent you the only video my client has. Her system deletes videos every 30 days. The only way she knew how to preserve the video was to record it on her cell phone. You have what you asked for to the extent my client has it in her possession."*

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<sup>8</sup> See 23-2-11352-7 SEA

<sup>9</sup> Metadata within the file identified it as a video captured on a cellphone, and that was created on 07/12/2022, nearly a month after the action was filed.

- v. On 05/22/2024 Ms. Gass submitted this conflicting statement to the court<sup>10</sup>:

2. *On Issues of Discretion & Evidence*

Spoilation

Mr. Bennett cites several cases with respect to spoilation of evidence, however, he presents no evidence that Ms. Manning “spoiled” any evidence. In her response to Mr. Bennett’s brief on appeal, Ms. Manning clearly states that the video evidence Mr. Bennett claims was spoiled by Ms. Manning still exists. *Manning Response to Appeal* at p. 8.

E. Mrs. Manning’s own statements are judicial admission of:

her interacting with me; my wife; my children; the Deputy that responded; that they took place upon her porch; and that the video evidence of them has all been deleted, with a 93-second exception.

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**4. Allegation of unlawful harassment is contradicted by the shifting timeline; by two eyewitness declarations; by Mr. Bennett; and by the responding deputy.**

A. The Deputy was dispatched for possible DV in progress. He was obligated to investigate, and arrest (mandatory) if ANY form of DV was suspected. After Mr. Bennett departed, and after getting the details from Mrs. Manning, his log entry was:

“16:23:37 \*MISC 2C67 Comment:HOME OWNER'S SON WANTED TO SEE HIS 16YO SON. HOME OWNER/GRANDPARENTS HAVE CUSTODY OF THE SON AND THE SON DID NOT WISH TO SEE HIS FATHER. FATHER DEPARTED THE SEE FREELY AND IS GOING HOME. FATHER ADVISD HE WILL FOLLOW UP WITH HIS ATTORNEY.”

16:27:35 \*MISC 2C67 Comment:HOME ADVISED SHE CAN SEEK AN ORDER WITH THE COURTS IF SHE DOES NOT WANT HER SON AROUND.

16:34:39 \*MISC 2C67 Comment:NO CRIME”

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<sup>10</sup> Answer to Petition for Review 5/22/2024

*B. She flip-flops on the order of events, and intentionally allowed video evidence of the events to be erased.*

*C. Mrs. Bennett's eyewitness declaration denies the allegations of Mrs. Manning.<sup>11</sup> As does her daughter's eyewitness declaration.<sup>12</sup>*

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## **5. Perjury and Privelege.**

The document referred to in the section labeled privilege in Respondents answer (page-7) is fraudulent. It is not a transcription of a audio conversation, and Mrs. Manning did not hear it. It is an email, containing parts of a Yahoo instant messenger electronic communication (text, not voice), that was intercepted<sup>13</sup>, and has been edited.

- Looking at the document,<sup>14</sup> on page-1 compare the first paragraph to the first six lines of the third paragraph; exact match. First page, second paragraph; exact match with the last 6-lines on page-2, and first 2-lines on page-3.
- The conversation is between a “magik” and a “princess kelly”

## **Legal Standard**

In Washington State, attorneys and parties are required to ensure that their claims and defenses are well grounded in fact and law. If it is found that claims/defenses are made without proper evidence or are intended to harass, the court can impose sanctions, including fines and payment of the opposing party's legal fees, adverse judgement, et cetera.

## **Argument**

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<sup>11</sup> CP at page 42

<sup>12</sup> Id at page 45

<sup>13</sup> Violating rcw 9.73.030(1)

<sup>14</sup> CP at page 87

Mrs. Manning continues to mislead and outright lie to the court with impunity. Boldly making false allegations, using an improperly obtained past default judgement (obtained in violation of Rule 60(b)(3)) to try and mislead the court and evade review her mala fide actions.

Ms. Gass has not only made statements on behalf of her client that due diligence would've shown to be false, she has:

- ◆ Declined to withdraw statements made known to her to be false.
- ◆ Repeatedly made conclusory allegations, after being informed they were unfounded, and objecting to Mr. Bennett's discovery requests for evidence substantiating the allegations.

### **Request for Relief**

The Appellant requests the Court to order the Respondent to produce any additional video evidence that may exist and to provide a detailed explanation of the preservation process.

I, Zackariah Jeremiah Bennett,

Do certify under penalty of perjury under the laws of the State of Washington that the foregoing is true and correct to the best of my knowledge.

Zackariah Jeremiah Bennett

05/31/2024

At Goldendale, WA

x words



## **Exhibit A**

On Mon, May 20, 2024, 14:46 Tolt Law dba OW Hollowell & Associates <[carnationlaw@comcast.net](mailto:carnationlaw@comcast.net)> wrote:

We sent you the only video my client has.  
Her system deletes videos every 30 days.

The only way she knew how to preserve the video was to record it on her cell phone.

You have what you asked for to the extent my client has it in her possession.

**Nancy Gass**  
**Attorney at Law**  
*O.W. Hollowell & Associates*  
4471 Tolt Avenue  
P.O. Box 1041  
Carnation, WA 98014  
Tel: (425) 333-4848  
Fax: (425) 333-4884

## **Exhibit B**

**Superior Court of Washington, County of King**

Melvina Manning 05/13/1959  
Petitioner DOB

vs.

Zackariah J Bennett 01/07/1981  
Respondent DOB

**No.22-2-09380-3 KNT**

**Motion for Renewal of Protection Order (MTRPO)**

☒ Domestic Violence

☐ Stalking

☐ Vulnerable Adult

☐ Sexual Assault

☒ Unlawful Harassment

**Motion for Renewal of Protection Order**

1. The *Protection Order* granted on (date) 08/05/2022\_, will expire on (date) 08/05/2022

2. I want to renew the protection order and any weapons surrender order because:

Zackariah J Bennett currently has a case with the Court of Appeals (Appellate Court Case Number 84450-4) to have the current Protection Order dismissed. No ruling has been made by the Appeals Court as it is still pending.

I have received over 20 E-Service notifications from documents that Zackariah J Bennett has filed with the Courts since the Protection Order was granted including Cause No. 22CV12186KCX filed on 08/04/2022 seeking an injunction on any prevention of communication.

On 04/24/2023, I accepted E-Service from Zackariah J Bennett for King County Superior Court Cause No. 08-3-03956-4 Under this Cause No. I was granted custody of Timothy Bennett. I do not know the purpose of this filing as I have only received an E-Service notification.

The above actions taken by Zackariah J Bennett are why I am requesting that the Protection Order be renewed. He has made every effort to have the Protection Order dismissed and is making contact with me through the Courts with all of the Motions he has filed and continues to file. If the Protection Order is not renewed, he will try to make contact with myself and/or Timothy Bennett at our home or the school Timothy attends.

RCW 7.105.410  
Mandatory (07/2022)  
PO 050

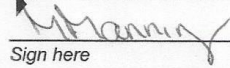
Motion for Renewal of Protection  
Order  
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3. I want the renewed order to stay in place [ x ] for (number) 1 year/s [ ] permanently.

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at (city and state): Carnation, WA

Date: 05/01/2023



Sign here

Print name

Melvina Manning

You must provide an address where you will receive legal documents. You have a right to keep your residential address confidential. If you have one, you may provide an address, other than your residence, where you will receive legal documents:

**This document must be served on the other party, and  
proof of service must be in the court file prior to the hearing.**

RCW 7.105.410  
Mandatory (07/2022)  
PO 050

Motion for Renewal of Protection  
Order  
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